

FORM 6

Appointment of a Land & Water Broker

Once completed, please email this form to matt@qldwc.com.au

Part 1 — Client Details

Client 1

Note: The client is the person. This may be the owner (or authorised representative of the owner) of the water right that is to be sold, or a prospective buyer seeking to purchase a water right.

Client name:

ABN:

ACN:

Are you registered for GST? Yes No

Address:

Suburb:

State:

Postcode:

Phone:

Fax:

Mobile:

Email:

Client 2

Note: Annexures detailing additional clients may be attached if required.

Client name:

ABN:

ACN:

Are you registered for GST? Yes No

Address:

Suburb:

State:

Postcode:

Phone:

Fax:

Mobile:

Email:

Part 2 — Land & Water Broker Details

Trading name: Queensland Water Consultancy • ABN: 32 087 004 439

Individual Broker:

Address: 74 Denham Terrace, Tarragindi QLD 4121

Phone: 0418 840 896 Mobile: 0418 840 896 Email: matt@qldwc.com.au

Date:

Part 3 — Details of Land and/or Water to be Sold, Let, Purchased, or Managed

Please provide details of the land and/or water allocation or licence (the property and water right).

Note: Annexures detailing multiple lots or water rights may be attached if required.

Property address:

Scheme:

Water Allocation:

Water Licence:

Lot:

Plan:

Reference Title:

Area (ha):

Part 4 — Appointment of Water Broker

Section 1 — Performance of service

Annexures detailing the performance of service may be attached if required. The client appoints the water broker to perform the following service/s:

Sale

Purchase

Temporary Transfer / Lease / Management

Leasing (water brokers)

Auction — Auction date (must be completed):

Other (please specify):

Section 2 — Term of appointment (sole and exclusive appointments)

Single appointment for a particular service or services

Start:

End:

Continuing appointment for a service or a number of services over a period

Start:

End:

Section 3 — Price

State the price for which the water, water right, land, or business is to be sold or let. Note: Bait advertising is an offence under the Australian Consumer Law.

Reserve / List \$

Search price \$

Section 4 — Instructions / conditions

The client may list any condition, limitation, or restriction on the performance of the service. Instructions/conditions may be attached if required.

Part 5 — Water Sales: Open Listing, Sole Agency, or Exclusive Agency

To the client: you may appoint a water broker to sell water based on an open listing, a sole agency, or an exclusive agency. Tick the basis of appointment below. The following explains the circumstances under which you must pay a commission to the water broker if the water is sold during their term of appointment.

Open Listing

- You appoint the water broker to sell the water right, but you retain a right to appoint other water brokers on similar terms, without penalty or extra commission.
- No end date required. Appointment can be ended by either you or the water broker at any time by giving written notice.
- When you must pay: the water broker is irrevocably entitled to the agreed commission upon settlement if the water broker is the effective cause of sale.

Sole Agency

- If you appoint a new water broker during an existing water broker's sole agreement term and the water right is sold during that term, you may have to pay a commission to each water broker (two commissions); and damages for breach of contract arising under the existing water broker's appointment.

Exclusive Agency

- The client must pay the appointed water broker upon settlement whether this water broker, any other water broker, or person (including the client themselves) sells the water right during the term of the appointment.
- If the client sells the water right after the exclusive appointment expires and the water broker was the effective cause of sale (introduced the buyer to the water), the water broker may be entitled to commission.

At the end of the sole or exclusive agency, the parties ☐ Agree ☐ Do not agree

that the appointment will continue as an open listing. (Please tick whichever is relevant.)

Part 6 — Authorisation to Incur Fees, Charges, and Expenses

The client authorises the water broker to incur the following expenses in relation to the performance of the service/s. Annexures may be attached if required.

Section 1 — Advertising / Marketing

Your water broker may either complete this section or attach annexures of marketing/advertising activities. In either case, the authorised amount must be written here.

Authorised amount \$

When payable:

Section 2 — Repairs and maintenance (if applicable)

Water right management

Section 3 — Other*Description of fees and charges. The water broker may either complete this section or attach annexures.*

Description	Amount	When payable

Section 4 — Water broker's rebate, discount, commission, or benefit**Water Broker's Commission**

The Seller agrees that Queensland Water Consultancy is irrevocably entitled to the following agreed commission on the sale of the water, at the following percentage rate of:

- 5.00% + GST of the gross proceeds of sale.

Queensland Water Consultancy is irrevocably entitled to the agreed commission upon settlement.

Signed by the Seller:

Date:

Part 7 — Signatures**Client 1**

Full name:

Signature:

Date:

Client 2

Full name:

Signature:

Date:

Water Broker*A water broker working for an agency can sign this form on behalf of the water broker.*

Full name:

Signature:

Date:

Schedules and Attachments*List any attachments.***WARNING: THE CLIENT IS ADVISED TO SEEK INDEPENDENT LEGAL ADVICE BEFORE SIGNING THIS FORM.****Part 8 — Reappointment**

Use this section to reappoint Queensland Water Consultancy. A new appointment form is required if any of the terms or conditions are to change. Your water broker can only be reappointed within 14 days before the contract ends — not before.

I/we re-appoint:

as water broker to:

Client's name:

Signature:

Date:

Client's name:

Signature:

Date: